

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF CHIRKOV AND OTHERS v. RUSSIA

(Applications nos. 65077/19 and 10 others –
see appended list)

JUDGMENT

STRASBOURG

13 October 2022

This judgment is final but it may be subject to editorial revision.



In the case of Chirkov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President,*
Andreas Zünd*,*
Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar*,

Having deliberated in private on 15 September 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The applicants were represented by the lawyers of the former Memorial Human Rights Centre, an NGO currently de-registered in Moscow.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:

...

(c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; ...”

8. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an “exceptional case” and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018). The authorities’ failure to comply with those requirements, in the Court’s view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019).

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. The Court discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by Russian law. It concludes that that the national authorities failed to comply with applicable rules of domestic procedure and considers that the applicants’ arrest and detention were not “in accordance with a procedure prescribed by law”.

10. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences, and *Frumkin v. Russia*, no. 74568/12, 5 January

2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies).

12. In view of the above findings under, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning alleged restrictions on the right to examine witnesses.

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, in particular most recently, *Saidov v. Russia [Committee],* no. 31872/19, § 23, 26 July 2022), the Court considers it reasonable to award the sums indicated in the appended table.

15. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints about the unlawful detention (deprivation of liberty) and other complaints raised under the well-established case-law of the Court, as indicated in the appended table, admissible and *decides* that there is no need to examine separately the applicants' complaints under Article 6 of the Convention concerning alleged restrictions on the right to examine witnesses;

3. *Holds* that there has been a breach of Article 5 § 1 of the Convention concerning the applicants' unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 13 October 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	65077/19 18/12/2019	**Andrey Viktorovich CHIRKOV** 1975	12/06/2019	12/06/2019	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017; detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018)	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016) Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation to support a journalist, Ivan Golunov, 12/06/2019; Moscow City Court, 20/08/2019, fine of RUB 20,000; Article 20.2 § 6.1 of CAO	3,900
2.	65244/19 18/12/2019	**Maksim Andreyevich CHERENKOV** 1985	12/06/2019	12/06/2019	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017); detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018); applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (see Karelin v. Russia, no. 926/08, 20 September 2016) Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation to support a journalist, Ivan Golunov, 12/06/2019; Moscow City Court, 20/08/2019, fine of RUB 10,000; Article 20.2 § 6 of CAO	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)		
3.	1747/20 18/12/2019	**Pavel Aleksandrovich BUKHSHTAB** 1980	27/07/2019, 2:40 p.m.	27/07/2019, 9:10 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019); detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with 30 hours of community service. Moscow City Court, 16/09/2019.	3,900
4.	1782/20 18/12/2019	**Yevgeniy Yevgenyevich SEMENOV** 1987	27/07/2019, 4:37 p.m.	27/07/2019, 6:45 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of tribunal - absence of prosecuting party in administrative proceedings Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 10,000. Moscow City Court, 26/09/2019.	3,900
5.	1788/20 27/12/2019	**Yelena Grigoryevna TELINGATER** 1958	27/07/2019, 1:30 p.m.	27/07/2019, 10:45 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016)	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019); detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 20,000. Moscow City Court, 22/08/2019.	
6.	1792/20 18/12/2019	**Ivan Aleksandrovich MITROFANOV** 1999	27/07/2019, 3:00 p.m.	28/07/2019, 0:30 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019); detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of tribunal - absence of prosecuting party in administrative proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with 20 hours of community service. Moscow City Court, 02/10/2019.	3,900
7.	12158/20 27/02/2020	**Yuliya Vladimirovna YEFREMOVA** 1998	27/07/2019, 6:30 p.m.	27/07/2019, 9:00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence case (Karelin v. Russia, no. 926/08, 20 September 2016) Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 10,000. Moscow City Court, 28/08/2019	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
8.	12162/20 27/02/2020	**Aleksandr Vladimirovich FAST** 1987	27/07/2019, 2:30 p.m.	27/07/2019, 6:00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019); detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence case (Karelin v. Russia, no. 926/08, 20 September 2016) Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 12,000. Moscow City Court, 06/09/2019.	3,900
9.	12195/20 27/02/2020	**Roman Grigoryevich KRAVCHENKO** 1982	27/07/2019, 6:25 p.m.	28/07/2019, 0:30 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019); detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of tribunal - lack of a prosecuting party in the administrative offence case against him Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 10,000. Moscow City Court, 28/08/2019.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
10.	12200/20 27/02/2020	**Sergey Alekseyevich BARYSHNIKOV** 1998	27/07/2019, 8:08 p.m.	29/07/2019 3:30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019); detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of tribunal - lack of a prosecuting party in the administrative proceedings Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 6.1 of CAO with fine of RUB 15,000. Moscow City Court, 30/08/2019.	3,900
11.	12216/20 27/02/2020	**Anatoliy Aleksandrovich ROSHCHIN** 1948	27/07/2019, 1:53 p.m.	27/07/2019, 6:20 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019); detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of tribunal - lack of a prosecuting party in the administrative proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 10,000. Moscow City Court, 04/09/2019.	3,900

[1] Plus any tax that may be chargeable to the applicants.